

Lomash Kumar Soni vs Smt. Nandani Soni @ Komal on 12 October, 2023

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HIGH COURT OF CHHATTISGARH, BILASPUR

CRMP No. 2356 of 2023

Lomash Kumar Soni S/o Nankuram Soni Aged About 37 Years R/o Village Pakariya, Sonarpara, Ward No. 13, Tahsil Pamgarh, District : Janjgir-Champa, Chhattisgarh

---- Petitioner

Versus

1. Smt. Nandani Soni @ Komal W/o Shri Ajju Soni Aged About 35 Years R/o Ward No. 37, Durga Chowk, Rajnandgaon, Tahsil And District Rajnandgaon, C.G.
2. Ramkumar Soni S/o Late Durga Prasad Soni Aged About 60 Years R/o Ward No. 10, Bajarpara, Pandariya, Tahsil Pandariya, District : Kawardha (Kabirdham), Chhattisgarh
3. Smt. Nirmala Soni W/o Shri Ramkumar Soni Aged About 58 Years R/o Ward No. 10, Bajarpara, Pandariya, Tahsil Pandariya, District : Kawardha (Kabirdham), Chhattisgarh
4. Naveen Soni S/o Shri Ramkumar Soni Aged About 32 Years R/o Ward No. 10, Bajarpara, Pandariya, Tahsil Pandariya, District : Kawardha (Kabirdham), Chhattisgarh
5. Nandkishore Soni S/o Shri Ramkumar Soni Aged About 34 Years R/o Ward No. 10, Bajarpara, Pandariya, Tahsil Pandariya, District : Kawardha (Kabirdham), Chhattisgarh
6. Smt. Geeta Soni W/o Nandkishore Soni Aged About 27 Years R/o Ward No. 10, Bajarpara, Pandariya, Tahsil Pandariya, District : Kawardha (Kabirdham), Chhattisgarh
7. Rajesh Soni S/o Late Damodar Soni Aged About 35 Years R/o Kushalpur, P.S. Puranibasti, Raipur, Tahsil And District- Raipur, Chhattisgarh.
8. Smt. Kiran Soni W/o Shri Rajesh Soni Aged About 43 Years R/o Kushalpur, P.S. Puranibasti, Raipur, Tahsil And District- Raipur, Chhattisgarh.
9. Ajju Soni S/o Late Arabchand Soni Aged About 33 Years R/o Ward No. 35, Durga Chowk, Rajnandgaon, Tahsil And District Rajnandgaon, Chhattisgarh.
10. Chandrakant Soni S/o Late Arabchand Soni Aged About 45 Years R/o Ward No. 35, Durga Chowk, Rajnandgaon, Tahsil And District Rajnandgaon, Chhattisgarh.
11. Piyushkant Soni S/o Late Arabchand Soni Aged About 39 Years R/o Ward No. 35, Durga Chowk, Rajnandgaon, Tahsil And District Rajnandgaon, Chhattisgarh.
12. Smt. Anju Soni W/o Shri Chandrakant Soni Aged About 40 Years R/o Ward No. 35, Durga Chowk, Rajnandgaon, Tahsil And District Rajnandgaon, Chhattisgarh.
13. Smt. Rupa Soni W/o Shri Piyushkant Soni Aged About 37 Years R/o Ward No. 35, Durga Chowk, Rajnandgaon, Tahsil And District Rajnandgaon, Chhattisgarh.

---- Respondents

(Cause Title is taken from Case Information System)

For the Petitioner

: Shri Chandra Prakash Lahrey,
Advocate.

Hon'ble Shri Justice Rakesh Mohan Pandey
ORDER

12.10.2023

1. In the present petition, the petitioner has challenged the order dated 19.07.2023 passed by the learned First Additional Sessions Judge, Raipur, District Raipur in Criminal Revision No. 330 of 2022 whereby the order passed by the learned Judicial Magistrate First Class, Raipur in unregistered Complaint Case dated 30.06.2022 has been affirmed.

2. The facts of the present case are that the petitioner filed a complaint case under Section 200 of Cr.P.C. for taking cognizance of an offence punishable under Section 494 read with Section 34 of IPC. The petitioner in his complaint case stated that he was married to respondent No.1 on 28.01.2012 at Village Pandariya, Police Station and Tehsil Pandariya, District Kawardha. It is further stated that respondent No.1 was taken by her uncle on 01.11.2012 to her parental house and since then, she has been staying there. It is further pleaded that the petitioner approached many times but respondent No.1 did not return. An application for restitution of conjugal rights was also filed and the same was decreed, even though respondent No.1 refused to stay along with the petitioner. It is further alleged that respondent No.9 knowing the fact very well that respondent No.1 is the married wife of the petitioner, performed marriage with respondent No.1 on 28.01.2017 at Arya Samaj Mandir, Baijnathpara, Marhi Mata Mandir, Raipur and the other respondents assisted them. It is stated that respondents No.1 and 9 are residing at Rajnandgaon as husband and wife. It is further stated in the complaint case that a written report was made to the police on 15.09.2018 and to the Superintendent of Police on 02.11.2018 as also to the Inspector General on 26.11.2018, respectively but no action has been taken; therefore, a complaint case has been filed. The petitioner examined himself and one Mukesh Thawait and also filed certain documents.

3. The learned trial court vide order dated 30.06.2022 held that the complainant has stated in his evidence that he was informed by one Mukesh Thawait regarding the marriage of respondents No.1 and 9. There is no document to establish that respondent No.1 has performed marriage with respondent No.9. Mukesh Thawait in his statement stated that he had seen respondents No.1 and 9 coming out of the temple but he had not witnessed the marriage and therefore, the learned trial Court dismissed the complaint case. A revision was preferred by the petitioner and the learned revisional Court vide order dated 19.07.2023 affirmed the findings recorded by the learned trial Court.

4. Learned counsel for the petitioner would submit that the petitioner has proved the marriage performed between respondents No.1 and 9. He would further submit that the documents including

the photographs and the statement of Mukesh Thawait would establish that the marriage between respondents No.1 and 9 was performed but the learned Courts below have committed an error of law by discarding such evidence.

5. Heard learned counsel appearing for the petitioner and perused the documents.

6. The Hon'ble Supreme Court in the matter of S. Nagalingam vs. Sivagami, reported in (2001) 7 SCC 487 in paragraph 10 held that the second marriage should be proved to be a valid marriage according to the personal law of the parties. Paragraph 10 is reproduced herein below:

"10. It is undoubtedly true that the second marriage should be proved to be a valid marriage according to the personal law of the parties, though such second marriage is void under Section 17 of the Hindu Marriage Act having been performed when the earlier marriage is subsisting. The validity of the second marriage is to be proved by the prosecution by satisfactory evidence."

7. In the matter of Pashaura Singh vs. State of Punjab and Another, reported in (2010) 11 SCC 749, the Hon'ble Supreme Court has laid down ingredients of Section 494 of IPC in paragraph 10 which reads as under:

"10. Section 494, IPC, inter alia, requires the following ingredients to be satisfied, namely, (i) the accused must have contracted first marriage; (ii) he must have married again; (iii) the first marriage must be subsisting; and (iv) the spouse must be living. Insofar as present case is concerned the appellant's marriage with Kamaljeet Kaur was not subsisting on 2-1-2002 when he is said to have married second time."

8. Now coming to the facts of the present case in light of the law laid down by the Hon'ble Supreme Court in the matters of S. Nagalingam (supra) and Pashaura Singh (supra), it is quite vivid that neither the petitioner nor his witness witnessed the marriage between respondents No.1 and 9. The photographs as stated in the order impugned do not prove the valid marriage between them.

9. In the present case, the petitioner has annexed only the orders passed by the learned revisional Court and the trial Court. Now coming to the ingredients of Section 494 of IPC, the first ingredient is to satisfy that the accused was a married lady; the second ingredient is that he or she must have married again; these ingredients have not been satisfied and proved beyond reasonable doubt. Therefore, in the considered opinion of this Court, the Courts below have not committed any error of law in dismissing the complaint case.

10. Consequently, the present petition fails and is hereby dismissed.

Sd/-

(Rakesh Mohan Pandey) Judge Nimmi